

Meera Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 February 2020 · WRIT - C No. 3251 of 2020 · **Writ disposed; petitioners relegated to Clause 6.5 objections; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking to quash a demand notice and to have electricity bills revised is not decided on merits where an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The High Court disposed of the petition with liberty to file separate Clause 6.5 objections within three weeks, directed the licensee to decide them by speaking and reasoned orders in accordance with law, and restrained coercive action on the impugned demand for eight weeks or until decision, whichever is earlier.

FACTUAL SUMMARY

Meera Devi and 119 others challenged a demand notice dated 11 June 2019 issued by respondent no. 3. They sought certiorari to quash the notice, a mandamus restraining coercive recovery while their representation remained pending, and a direction to respondent no. 3 to decide that representation and revise their electricity bills in accordance with law. The writ was heard by a Division Bench of the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

HOLDING

A writ seeking to quash a demand notice and to have electricity bills revised is disposed of without deciding the bill on merits where the petitioners have an alternative remedy of filing objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Separate objections may be filed before the licensee within three weeks; the licensee shall consider and decide them by speaking and reasoned orders strictly in accordance with law, preferably within three weeks of filing. Coercive action in pursuance of the impugned demand shall not be taken for eight weeks from the order or until the objections are decided, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court accepted counsel's submission that a Clause 6.5 objection is the alternative remedy for the demand-notice and bill-revision dispute and disposed of the writ on that ground. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The challenge to the 11 June 2019 demand notice and the prayer to revise the petitioners' bills were left to be decided on Clause 6.5 objections, not on the writ. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The Court granted liberty to file separate Clause 6.5 objections before respondent no. 3 and directed that officer to consider and decide them by speaking and reasoned orders. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 11.6.2019 AND WHETHER THE PETITIONERS' BILLS SHOULD BE REVISED

The writ was not decided on merits; the petitioners were relegated to Clause 6.5 objections. ¶ 1